

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SJR50 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____ Amendment submitted by: Ryan Eaves _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED
SENATE JOINT
RESOLUTION NO. 50

By: Bergstrom of the Senate

and

Eaves of the House

FLOOR SUBSTITUTE

A Joint Resolution directing the Secretary of State to refer to the people for their approval or rejection a proposed amendment to Section 2 of Article XXV-A of the Constitution of the State of Oklahoma; modifying duty of State of Oklahoma to provide funding for certain persons pursuant to federal Medicaid program based on modification of certain matching amount of funding provided by the federal government; providing for repeal of Sections 1, 2, 3, and 4 of Article XXV-A of the Constitution based upon modification of federal funding provisions in the Medicaid program; ordering a legislative referendum; providing for enactment of statutory provisions related to Medicaid funding based on modification of certain matching amount of funding provided by the federal government; prescribing procedures for notification to the Secretary of State, the Governor, the Speaker of the Oklahoma House of Representatives and the President Pro Tempore of the Oklahoma State Senate; imposing duties on the Attorney General for notification of events related to modification of federal Medicaid funding; providing ballot title; and directing filing.

1 BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
2 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

3 SECTION 1. The Secretary of State shall refer to the people for
4 their approval or rejection, as and in the manner provided by law,
5 the following proposed amendment to the Constitution of the State of
6 Oklahoma by repealing Sections 1, 2, as amended by Section 2 of this
7 measure, 3, and 4 of Article XXV-A of the Oklahoma Constitution.

8 The repeal of these sections shall only become effective as law if
9 the question contained in this measure is both approved by the
10 people and also if the federal government modifies the federal
11 medical assistance percentage (FMAP). If the federal medical
12 assistance percentage (FMAP) established under 42 U.S.C., Section
13 1396d(y) is modified, then within fifteen (15) days of the effective
14 date of such modification, the Attorney General shall send a
15 certification of that event to the Secretary of State, the Governor,
16 the Speaker of the Oklahoma House of Representatives, and the
17 President Pro Tempore of the Oklahoma State Senate. Each and every
18 one of those public officials, acting together or separately as
19 required, shall take such steps as necessary to cause the provisions
20 of the Oklahoma Constitution to be modified in order to make the
21 repeal of Sections 1, 2, 3, and 4 of Article XXV-A of the Oklahoma
22 Constitution effective as law. Such actions shall be completed not
23 later than fifteen (15) days after the latest date upon which any
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1 one of the public officials receive the certification required by
2 the provisions of this section.

3 SECTION 2. The Secretary of State shall refer to the people for
4 their approval or rejection, as and in the manner provided by law,
5 the following proposed amendment to Section 2 of Article XXV-A of
6 the Constitution of the State of Oklahoma to read as follows:

7 Section 2. A. In addition to those otherwise eligible for
8 medical assistance under Oklahoma's Medicaid program, the State
9 shall, until the conditions described in subsection B of this
10 section occur, provide medical assistance under Oklahoma's Medicaid
11 program to Low Income Adults and for medical services at health care
12 facilities for which the State receives a match of one hundred
13 percent (100%) pursuant to federal law.

14 B. ~~No greater or additional burdens or restrictions on~~
15 ~~eligibility or enrollment shall be imposed on persons eligible for~~
16 ~~medical assistance pursuant to this Article than on any other~~
17 ~~population eligible for medical assistance under Oklahoma's Medicaid~~
18 ~~program~~ If the federal medical assistance percentage (FMAP)
19 established under 42 U.S.C., Section 1396d(y) is reduced below
20 ninety percent (90%), then the constitutional duty imposed on the
21 State by subsection A of this section shall cease to have effect,
22 notwithstanding any subsequent increases to such FMAP; provided,
23 however, this subsection shall not be construed to prohibit the
24 Legislature from enacting laws to provide Medicaid coverage to Low

1 Income Adults. The provisions of this subsection shall not be
2 applicable to medical services at health care facilities for which
3 the State receives a match of one hundred percent (100%) pursuant to
4 federal law.

5 SECTION 3. Pursuant to Section 3 of Article V of the Oklahoma
6 Constitution, there is hereby ordered the following legislative
7 referendum which shall be filed with the Secretary of State and
8 addressed to the Governor of the state, who shall submit the same to
9 the people for their approval or rejection. The enactment of
10 Sections 4, 5, and 6 of this measure shall only occur if this
11 measure is both approved by the people and also if the federal
12 government modifies the federal medical assistance percentage
13 (FMAP). If the federal medical assistance percentage (FMAP)
14 established under 42 U.S.C., Section 1396d(y) is modified, then
15 within fifteen (15) days of the effective date of such change, the
16 Attorney General shall send a certification of that event to the
17 Secretary of State, the Governor, the Speaker of the Oklahoma House
18 of Representatives, and the President Pro Tempore of the Oklahoma
19 State Senate. Each and every one of those public officials, acting
20 together or separately as required, shall take such steps as
21 necessary to cause the statutory provisions contained in Sections 4,
22 5, and 6 of this measure to become effective as law and to cause
23 those provisions to become part of the Oklahoma Statutes in the same
24 manner as other enacted statutes. Such actions shall be completed

1 not later than fifteen (15) days after the latest date upon which
2 any one of the public officials receive the certification required
3 by the provisions of this section.

4 SECTION 4. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 7401 of Title 63, unless there
6 is created a duplication in numbering, reads as follows:

7 As used in this act:

8 1. "Centers for Medicare and Medicaid Services" or "CMS" refers
9 to the agency responsible for administering the Medicaid program at
10 the federal level, including review and approval of State Plan
11 Amendments;

12 2. "Low-income adults" refers to those individuals over age
13 eighteen (18) and under age sixty-five (65) whose income does not
14 exceed one hundred thirty-three percent (133%) of the federal
15 poverty level, as described by and using the income methodology
16 provided in the federal Medicaid statute at 42 U.S.C., Section
17 1396a(a)(10)(A)(i)(VIII), and who meet applicable nonfinancial
18 eligibility conditions for Medicaid under 42 CFR, Part 435, Subpart
19 E;

20 3. "Medical assistance" means payment of part or all of the
21 cost of the care and services, or the care and services themselves,
22 or both, as provided in the federal Medicaid statute, 42 U.S.C.,
23 Section 1396 et seq.;

1 4. "Oklahoma Health Care Authority" refers to the single state
2 agency responsible for administering the Oklahoma Medicaid program
3 pursuant to 42 U.S.C., Section 1396a(a)(5); and

4 5. "State Plan Amendment" refers to the document(s) the state
5 submits to the Centers for Medicare and Medicaid Services for review
6 and approval before making a change to its program policies,
7 including setting forth the groups of individuals to be eligible for
8 medical assistance.

9 SECTION 5. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 7402 of Title 63, unless there
11 is created a duplication in numbering, reads as follows:

12 In addition to those otherwise eligible for medical assistance
13 under Oklahoma's Medicaid program, the state shall provide medical
14 assistance under Oklahoma's Medicaid program to low-income adults
15 and for medical services at health care facilities for which the
16 State receives a match of one hundred percent (100%) pursuant to
17 federal law.

18 SECTION 6. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 7403 of Title 63, unless there
20 is created a duplication in numbering, reads as follows:

21 The Oklahoma Health Care Authority shall take all actions
22 necessary to maximize federal financial participation in funding
23 medical assistance pursuant to this act.
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1 SECTION 7. The Ballot Title for the proposed Constitutional
2 amendment repealing Sections 1, 2, as amended by Section 2 of this
3 measure, 3, and 4 of Article XXV-A of the Oklahoma Constitution and
4 the enactment of statutory provisions related to Medicaid as set
5 forth in Sections 4 through 6 of this measure shall be in the
6 following form:

7 BALLOT TITLE

8 Legislative Referendum No. _____ State Question No. _____

9 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

10 This measure proposes an amendment to the Oklahoma Constitution
11 by repealing Sections 1, 2, 3, and 4 of Article 25-A, and it
12 also proposes the enactment of substantially the same language
13 from those constitutional sections as statutes. The repeal of
14 the constitutional sections and the enactment of statutes to
15 replace those constitutional provisions would not occur unless
16 the federal government reduces the amount of money it pays to
17 states in order to operate the Medicaid program. It also
18 proposes an amendment to Section 2 of Article 25-A which relates
19 to Medicaid. This change in the Constitution would become
20 effective if this measure is approved by the voters. The change
21 is related to the amount of money the federal government
22 provides for the Medicaid program. If the federal government
23 reduced the amount of money that it pays to states for the
24 Medicaid program to less than ninety percent (90%), then

Oklahoma would not be required to provide funding to pay medical costs in the Medicaid program for certain low-income adults. If this measure is approved and if the federal government modifies the amount of money it pays to states for the Medicaid program, then all of the provisions in the Oklahoma Constitution related to Medicaid would be repealed, but the substantive language related to Medicaid from the constitutional sections would become enacted as statutes of the State of Oklahoma. The statutes could be amended, repealed, or otherwise modified by the Legislature pursuant to the same procedures that allow enactment of laws during any regular or extraordinary session of the Legislature. If the federal government makes funding changes in the Medicaid program, the Attorney General would notify several public officials and the officials would have fifteen (15) days to update the text of the Constitution and Oklahoma Statutes.

SHALL THE PROPOSAL BE APPROVED?

FOR THE PROPOSAL — YES _____

AGAINST THE PROPOSAL — NO _____

SECTION 8. The Chief Clerk of the House of Representatives, immediately after the passage of this measure, shall prepare and file one copy thereof, including the Ballot Title set forth in

1 SECTION 7 hereof, with the Secretary of State and one copy with the
2 Attorney General.

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